UNIT -5

What is the ISO?

The International Organisation for Standardization (ISO) is a global body that develops and publishes international standards to ensure quality, safety, and efficiency in various sectors.

Established in 1947, the ISO has a rich history of advancing standardization to facilitate international trade and enhance cooperation among nations. Its primary purpose is to promote consistency and excellence in products, services, and systems, fostering trust and enabling businesses to operate on a level playing field.

By embracing ISO standards, organizations can streamline processes, reduce costs, and achieve greater customer satisfaction. Compliance with ISO requirements demonstrates a commitment to best practices and continual improvement, making companies more competitive in the global marketplace.

However, for companies that think ahead, ISO compliance isn't just a box-ticking exercise. Taking a risk-first approach means focusing on real threats like cyber attacks, turning compliance from a chore into a powerful advantage.

What are the standards set by ISO?

ISO sets a wide range of standards encompassing quality management, information security, risk management, environmental management, and more to assist organizations in achieving operational excellence and compliance with international regulations.

One of the most well-known ISO standards is ISO 9001, which focuses on quality management systems and ensuring that organizations effectively meet customer requirements. ISO/IEC 27001 is crucial for information security, providing a framework for managing sensitive data and **protecting it from breaches**.

ISO 14001, on the other hand, guides companies in implementing effective environmental management systems, reducing their impact on the environment and promoting sustainability practices. These standards play a vital role in establishing clear controls, frameworks, and guidelines that enable organizations to streamline their processes, enhance efficiency, and drive continual improvement.

World Intellectual Property Organization

The World Intellectual Property Organization (WIPO) is a specialized agency of the United Nations, located in Geneva, Switzerland. WIPO's mission is to lead the development of a balanced and effective international intellectual property (IP) system that enables innovation and creativity for the benefit of all. Established by the WIPO Convention in 1967, WIPO currently has 193 member states and provides a global policy forum, where governments, intergovernmental organizations, industry groups and civil society come together to address evolving IP issues. WIPO member states and observers meet regularly in a variety of standing committees and working groups. In these bodies, members negotiate the changes and new rules needed to ensure that the international IP system keeps pace with the changing world, and continues to serve its fundamental purpose of encouraging innovation and creativity. The United States Patent and Trademark Office (USPTO) regularly represents the U.S. government in these bodies in order to further U.S. IP policy, enhance the international framework administered by WIPO, and improve IP systems generally.

CYBER law in India

What is Cyber Law? Cyber Law is the law governing cyber space. Cyber space is a very wide term and includes computers, networks, software, data storage devices (such as hard disks, USB disks etc), the Internet, websites, emails

Cyber laws in India are primarily governed by the **Information Technology Act, 2000**, which provides legal recognition for electronic transactions, digital signatures, and defines penalties for cybercrimes. Key laws include the IT Act (amended 2008), the DPDP Act 2023 for data privacy, and IT Rules 2021 regarding intermediary guidelines, covering offenses like hacking, identity theft, and phishing.

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Key Components of Cyber Law in India

- **Information Technology Act, 2000 (IT Act):** The foundational law that governs electronic commerce and criminalizes cyber activities.
- **IT Amendment Act, 2008:** Introduced sections 66A-66F to address cyber terrorism, identity theft, and privacy violations

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- **Digital Personal Data Protection Act (DPDPA), 2023:** A comprehensive framework emphasizing user consent, data fiduciary responsibilities, and privacy protection.

- **Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021:** Imposes due diligence on social media intermediaries to curb illegal content

What is the Information Technology Act 2000?

A legal framework proposed by the Indian Parliament, the **Informational Technology Act of 2000**, is the primary legislation in India **dealing with cybercrime and electronic commerce**.

It was formulated to ensure the lawful conduct of digital transactions and the reduction of cyber crimes, on the basis of the Model Law on Electronic Commerce adopted by the United Nations Commission on International Trade Law. This legal framework, **also known as IT Act 2000**, comes with 94 sections, divided into 13 chapters and 4 schedules.

IT Act 2000 Sections

The **Information Technology Act 2000 has 94 sections** focusing on the regulation of electronic exchanges. These sections collectively establish a comprehensive framework for electronic governance, digital signatures, and the legal recognition of electronic records. All these sections play a crucial role in facilitating the use of digital technologies in governance. Some of the prominent sections of the IT Act 2000 are provided below.

Section 43 of IT Act 2000

Section 43 of Chapter IX of the IT Act, 2000 outlines various actions for which a penalty is imposed if done without permission from the person in charge of the computer system. These actions are discussed below.

Section 66 of IT Act 2000

If an individual engages in any action outlined in Section 43 with dishonest or fraudulent intent, he/she shall be subject to punishment. As per Section 66 of the IT Act 2000, this punishment may include imprisonment for a period of up to 3 years, a fine of up to Rs. 5 lakh, or both.

Section 66B of IT Act 2000

Section 66B outlines the punishment for dishonestly receiving stolen computer resources or communication devices. As per this section, anyone who knowingly receives or retains any stolen computer resource or communication device shall be liable to imprisonment for up to 3 years, or a fine of up to Rs. 1 lakh, or both.

Section 67A of the IT Act 2000

Section 67A deals with the punishment for publishing or sharing material containing sexually explicit acts in electronic form. On 1st conviction, individuals who publish such material shall face imprisonment for up to 3 years and a fine of up to Rs. 5 lakh. In the event of a 2nd or subsequent conviction, the punishment may extend to imprisonment for up to 5 years and a fine of up to Rs. 10 lakh.

What is the Definition of Intellectual Property Rights?

The definition of intellectual property rights is any and all rights associated with intangible assets owned by a person or company and protected against use without consent. Intangible assets refer to non-physical property, including right of ownership in intellectual property . Examples of intellectual property rights include:

- Patents
- Domain names
- Industrial design
- Confidential information
- Inventions
- Moral rights
- Database rights
- Works of authorship
- Service marks
- Logos
- Trademarks
- Design rights
- Business or trade names
- Commercial secrets
- Computer software

Categories of intellectual properties

What Are the Types of Intellectual Property?

There are four main types of intellectual property rights, including patents, trademarks, copyrights, and trade secrets. Owners of intellectual property frequently use more than one of these types of intellectual property law to protect the same intangible assets. For instance, trademark law protects a product's name, whereas copyright law covers its tagline.

1. Patents

The U.S. Patent and Trademark Office grants property rights to original inventions, from processes to machines. Patent law protects inventions from use by others and gives exclusive rights to one or more inventors. Technology companies commonly use patents, as seen in the patent for the first computer to protect their investment in creating new and innovative products. The three types of patents consist of:

- Design patents: Protection for the aesthetics of a device or invention. Ornamental design patents include a product's shape (Coca-Cola bottle), emojis, fonts, or any other distinct visual traits.
- Plant patents: Safeguards for new varieties of plants. An example of a plant patent is pest-free versions of fruit trees. But inventors may also want a design patient if the tree has unique visual properties.
- Utility patents: Protection for a product that serves a practical purpose and is useful. IP examples include vehicle safety systems, software, and pharmaceuticals. This was the first, and is still the largest, area of patent law.

2. Trademarks

Trademarks protect logos, sounds, words, colors, or symbols used by a company to distinguish its service or product. Trademark examples include the Twitter logo, McDonald's golden arches, and the font used by Dunkin.

Although patents protect one product, trademarks may cover a group of products. The Lanham Act, also called the Trademark Act of 1946, governs trademarks, infringement, and service marks.

3. Copyrights

Copyright law protects the rights of the original creator of original works of intellectual property. Unlike patents, copyrights must be tangible. For instance, you can't copyright an idea. But you can write down an original speech, poem, or song and get a copyright.

Once someone creates an original work of authorship (OWA), the author automatically owns the copyright. But, registering with the U.S. Copyright Office gives owners a head-start in the legal system.

4. Trade Secrets

Trade secrets are a company's intellectual property that isn't public, has economic value, and carries information. They may be a formula, recipe, or process used to gain a competitive advantage.

Right protected under intellectual property

1. The Copyrights Act, 1957 ("Copyright Act")

Copyright protects the expression of an idea rather than the idea itself. Under section 13 of the Copyright Act, a protection under copyright can be obtained for 'original literary, dramatic, musical and artistic works; cinematograph films; and sound recording'. Interestingly, a copyright protection can also be obtained for computer programmes. Copyright protection is a foundational pillar of IPR in India, particularly for creative and digital work.

2. The Trade Marks Act, 1999 ("Trade marks Act")

The Trade Marks Act, under section 2(zb) defines a 'trade mark' as 'a mark capable of being represented graphically and which is capable of distinguishing the goods or services of one person from those of others and may include shape of goods, their packaging and combination of colours…'. In simpler words, a trademark provides protection for symbols, colours, shapes, words, etc. representing and relating to a good or a service. As per current IP laws in India, trademark registration in India is critical for brand protection, domain name protection, and enforcement against brand infringement. Trademarks are among the most commercially valuable IP rights in India, especially for businesses built around brand identity.

3. The Patents Act, 1970 ("Patents Act")

A 'Patent' is an intellectual property right which protects any new invention. It is an exclusive right that protects the rights of the inventor and prevents other people to unauthorizedly use and misappropriate the registered patent. Patent protection in India, valid for 20 years, incentivizes innovation and is increasingly being sought by startups and multinational corporations for securing product and process technologies.

4. The Design Act, 2000 ("Design Act")

A 'design' under the Designs Act [section 2(d)] means and includes 'only the features of shape, configuration, pattern, ornaments or composition of lines or colours, applied to any article whether in two dimensional or three dimensional or in both forms, by any industrial process or means, whether manual, mechanical or chemical, separate or combined, which in the finished article appeal to an are judged solely by the eye'. Industrial designs IP protection in India helps companies secure visual aesthetics of products and representation in global marketplaces.

Copyright, patent trademark

Copyright Defined

A copyright is a collection of individual rights that you automatically have once you create an original work that is fixed in a tangible medium like a photograph, a book, or an mp3 file. These rights include the right to reproduce the work, to prepare derivative works, to distribute copies, to perform the work publicly, and to display the work publicly.

As the copyright owner, you can transfer an individual right or multiple rights to one or more people or collectively transfer them to one or more people. This can be accomplished through licensing, assigning, and other forms of transfers. Being a copyright owner also allows you to control whether and how your work is made available to the public.

Patents Defined

A patent protects inventions. These inventions can include new and useful processes, machines, manufactures, compositions of matter as well as improvements to them. The primary goal of the patent law is to encourage innovation and commercialization of technological advances. Patent law incentivizes inventors to publicly disclose their inventions in exchange for certain exclusive rights.

Inventors can apply for and be granted a patent from the U.S. Patent and Trademark Office. Unlike the copyright registration process, the patent application process is expensive, complex, and time consuming and generally should not be attempted without the assistance of an experienced patent attorney or agent.

Copyright Defined

A copyright is a collection of individual rights that you automatically have once you create an original work that is fixed in a tangible medium like a photograph, a book, or an mp3 file. These rights include the right to reproduce the work, to prepare derivative works, to distribute copies, to perform the work publicly, and to display the work publicly.

As the copyright owner, you can transfer an individual right or multiple rights to one or more people or collectively transfer them to one or more people. This can be

accomplished through licensing, assigning, and other forms of transfers. Being a copyright owner also allows you to control whether and how your work is made available to the public.

Design law

Design law in India is governed by the Designs Act, 2000, which protects the aesthetic, visual, and non-functional features of a product (shape, pattern, color). It is a territorial, registration-based right (administered by the Indian Intellectual Property Office) that grants a 10+5 year monopoly. The law prohibits pirating registered designs and protects against fraud imitation.

Key Aspects of Indian Design Law:

- Legal Framework: Governed by the Designs Act, 2000 and Designs Rules, 2001, ensuring compliance with TRIPS (Trade-Related Aspects of Intellectual Property Rights) standards.
- Definition & Scope:

Protects new or original, non-functional features of shape, configuration, pattern, or ornament applied to an article, judged solely by the eye.

- **Registration Process:**
  - Novelty: The design must not be previously published in any country or accessible to the public before filing.
  - Classification: Uses a classification system (similar to Locarno) to classify goods.
  - Examination: Technical examination is conducted by the Designs Office in Kolkata.
- Duration: Initial registration is for 10 years, renewable for an additional 5 years.
- Infringement & Remedies: Section 22 prohibits fraudulent or obvious imitation without the owner's consent. Penalties can include fines of up to ₹50,000 per design.
- Recent Developments: Proposed amendments aim to update terms to 5+5+5 years and allow multiple designs in a single application.

Difference from Other IPRs:

- Design vs. Patent: Designs protect *appearance* (what it looks like), while Patents protect *function* (how it works).
- Design vs. Copyright: Designs protect functional items, whereas Copyright protects artistic works.